3D METROLOGY ▾ OPTICAL ALIGNMENT
MECHANICAL SERVICES

Southeast Service Center
OASIS Alignment Services, LLC
7575 West Winds Blvd, Suite C
Concord, NC 28075
704.509.9393
www.oasisalignment.com

August 21, 2018

Mr. Dan Marr
Shoemaker Rigging & Transport
3385 Miller Park Road
Akron, OH 44312

RE: Proposal No. 35434-56791

Dear Mr. Dan Marr:

On behalf of OASIS Alignment Services, LLC (OASIS), I am pleased to present you with the enclosed revised proposal for the Laminator and Slitter alignment as described on the following pages. I trust that you will find the information consistent with your needs.

OASIS is recognized as the industry leader in the field of precision measurement. Allow me to tell you about the many benefits OASIS has to offer:

- OASIS utilizes and invests in the most advanced metrology equipment. Our portable 3-dimensional coordinate metrology tools include laser trackers, measuring arms, scan arms and large volume laser scanners. Our metrology services provide you with a level of precision, speed and data reporting that is unmatched by other metrology tooling.
- OASIS engineers and technicians have the most experience in the industry having performed literally thousands of successful projects since 1982. We are without question, the largest and most experienced company in our field.
- OASIS set the industry standards in measurement and alignment procedures, technical reports, baselines and monuments, portable tool cribs and specialized custom tooling.
- OASIS provides a comprehensive and uniform training program for all OASIS engineers and technicians - assuring you consistent results.
- OASIS provides our customers with a unique combination of offerings not typically found in one service provider. With our 3D metrology services, optical alignment expertise and mechanical capabilities, we provide the right tool at the right time for every customer application.

Thank you for the opportunity to present this proposal. If you have any questions, please call me at 704.509.9393; I will be pleased to lend whatever assistance I can.

Sincerely,

Derry Steedley

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OASIS Proposal

Customer:	**Tekni-Plex, Inc**		
Prepared For:	Mr. Dan Marr	**Prepared By:**	Derry Steedley
Proposal No.:	35434-56791	**Proposal Type:**	Time & Materials
Proposal Date:	August 21, 2018	*Proposal Valid Until: November 19, 2018*	

Project Scope

Dates of Service: August 21, 2018 Date is for proposal purpose only.

Equipment to be Serviced: New Laminator & Two Slitters Alignment Support

Laminator and Slitters Alignment

- OASIS will provide One Metrology Engineer to support the Alignment of the Laminator and the Two Slitters working Twelve hour shifts on Two Weekdays.
- OASIS will supply a technical report (with drawings) documenting the services performed and providing recommendations for corrective action where required.

Project Resources

Staffing

- Team A: One-Metrology Engineer

Shift Schedule

- Team A: Working 2 weekdays at 12 hours per shift

Equipment

- 1 Van
- 1 Laser Tracker

Project Costs

Labor:	$7,322	
Equipment:	$4,906	
Expenses:	$665	
Total Cost:	**$12,893**	(Time & Materials; Net 45 Days)

Plus state and local taxes where applicable

This Proposal contains CONFIDENTIAL and proprietary information of OASIS (including without limitation, pricing, scheduling, and staffing information) and you hereby agree not to disclose it without the prior written consent of OASIS except internally in connection with services rendered by OASIS.

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Conditions Required to Perform Service

- OASIS will be provided with reasonably free and unobstructed access to the components of the machine as required.
- The customer will provide all lockout and tag-out procedures to ensure the safety of OASIS personnel.
- Customer must supply electrical power outlet (110V, 15A) in the immediate vicinity of the work site.

Additional Notes

- Unless otherwise specified, this proposal assumes resources will come from our nearest Regional Service Center. Prompt confirmation is required in order to allocate these resources. Otherwise, the necessary resources and tooling may need to come from another Regional Service Center, which could result in additional costs related to travel and expenses.
- This proposal DOES NOT include work on weekend days or holidays.

Terms and Conditions

- Projects exceeding a month in duration as well as projects having more than seven days between service visits and which span calendar months will be invoiced on a monthly basis.
- The terms of payment are Net 45 Days.
- Our performance of these services is conditional upon the "***OASIS Alignment Services, LLC Terms and Conditions***" which can be found on the following page.

OASIS Alignment Services, LLC
Terms and Conditions

These Terms and Conditions constitute the complete understanding of the Parties with respect to the matters addressed herein (the "Terms") and together with the proposal attached hereto (the "Proposal") constitute the entire agreement of the Parties with respect to the Services (the "Agreement"). The Parties as referred to herein are the Customer as identified on the Proposal (the "Customer") and OASIS Alignment Services, LLC ("OASIS"). The Parties hereby agree that:

1. **SCOPE OF SERVICES**. The services to be provided by OASIS shall be limited to the services described in the Proposal (the "Services").

2. **FORCE MAJEURE/ DELAY**. Schedule dates are approximate and neither party hereto shall be liable for any losses or damages of any nature whatsoever incurred or suffered as a result of any failure or delay in performance due to any cause or circumstance beyond its reasonable control, including, without limitation, Acts of God, fire, war, terrorism, riot, explosion, accident, casualty, flood, inability to obtain fuel, power, labor or transportation facilities, governmental laws, regulations or orders, breakage or failure of machinery or apparatus, or labor trouble, strike, lockout or injunction. Should OASIS be delayed due to the negligent acts or omissions of the Customer, its officers, employees or agents, interference by other parties or inaccessibility of plant, property or equipment, in addition to the schedule being modified, a change order shall be issued to reimburse OASIS for costs incurred to re-establish the schedule. OASIS will make all reasonable efforts to ensure that the timeliness of our work is consistent with our commitment, the term "time is of the essence" does not apply.

3**.** **LICENSES AND PERMITS**. Customer shall bear the cost of all local licenses and permits necessary to the performance of the Services and shall procure, with the assistance of OASIS, such licenses and permits.

4. **LIABILITY**. (a) OASIS shall indemnify and save Customer harmless from and against liability imposed by law upon Customer arising out of claims from third parties for damages as a result of accidental bodily injury (including death) or damage to tangible property to the extent caused by the negligence or willful misconduct of OASIS or its employees in performance of the Services. (b) Notwithstanding anything herein to the contrary, OASIS shall not be liable to Customer under the Agreement or otherwise, and Customer shall indemnify and save OASIS harmless from and against any and all such liability, whether the claim be in contract, negligence, strict liability, other tort or any other theory or cause of action: (1) for losses, liabilities, damages, costs or expenses (i) arising out of bodily injury (including death) to any person or damage (including loss of use) to any property to the extent caused by or resulting from the negligence or willful misconduct of Customer, its officers, employees or agents, or (ii) which exceed the dollar limits or coverage of insurance specified in Paragraph 5 below, or (2) for loss of use, loss of profits, business interruption or consequential, indirect or incidental damages and regardless of whether any such loss or claim arises out of breach of contract or warranty, tort, product liability, indemnity, contribution, strict liability or any other legal theory.

5. **INSURANCE**. Throughout the term of this Agreement, OASIS shall procure and maintain the following minimum insurance coverage: (1) Commercial General Liability Policy, including Contractual Liability ($1,000,000 per occurrence, and $2,000,000 in the aggregate); (2) Comprehensive Automobile Liability Policy ($1,000,000 per accident, combined single limit); and (3) Worker's Compensation Policy (statutory requirement).

6. **WARRANTY**. All work furnished by OASIS in accordance with the Proposal shall be free of material defects for a period of ninety (90) days from completion of the work. In the event of any failure to conform to this Warranty, OASIS shall at its option and expense either repair the defect, correct the service or provide a replacement part (only if such part was provided by OASIS). OASIS shall not be responsible for costs of dismantling or reassembling the product. THE WARRANTIES SET FORTH IN THIS PARAGRAPH 6 ARE OASIS' SOLE AND EXCLUSIVE WARRANTIES. OASIS MAKES NO OTHER WARRANTIES OF ANY KIND WHATSOEVER, EXPRESS, IMPLIED, ORAL, WRITTEN OR OTHERWISE INCLUDING WITHOUT LIMITATION, WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE. IN NO EVENT SHALL OASIS OR ANY OF ITS DIRECTORS, OFFICERS, EMPLOYEES, AGENTS OR AFFILIATES BE LIABLE FOR ANY INDIRECT, INCIDENTAL, RELIANCE OR CONSEQUENTIAL DAMAGES INCLUDING, WITHOUT LIMITATION, DAMAGES ARISING FROM CLAIMS RELATED TO LOSS OF PROFITS OR REVENUE, LOSS OF USE OF EQUIPMENT OR OTHER DOWN TIME COSTS, WHETHER CLAIMED BY REASON OF BREACH OF WARRANTY, BREACH OF CONTRACT, INDEMINITY, CONTRIBUTION OR OTHERWISE.

7. **EXCLUSIVITY**. Notwithstanding anything herein to the contrary, the rights and remedies specifically set forth in this Agreement are the sole and exclusive rights and remedies available to the Customer.

8. **GOVERNING LAW**. The Agreement shall be governed and construed in accordance with the internal laws of the State of New Hampshire, without regard to conflict of laws principles.

9. **GENERAL PROVISIONS**. (a) Property. All data, calculations, reports, manuals and drawings will remain the property of OASIS and may not be reproduced, except for the Customer's use, or transmitted or disclosed to any party other than employees of the Customer without the prior written consent of OASIS. (b) Notice. All notices to OASIS shall be directed to OASIS Alignment Services, LLC, Attn: President, 255 Pickering Road, Rochester, NH 03867. All notices to Customer will be directed to the Customer address stated on the Proposal. (c) Entire Agreement. This Agreement supersedes all previous agreements and understandings between the Parties of any nature whatsoever, verbal or written, and constitutes the entire understanding between the Parties. The scheduling of OASIS services by the Customer shall be deemed acceptance of the Proposal and these Terms notwithstanding any conflicting terms and conditions provided with any purchase order or otherwise. (d) Severability. Each paragraph of the Agreement is severable from the entire Agreement and if one provision hereof is declared invalid, the remaining provisions shall nevertheless remain in effect.

Revision of May 2006